

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Filip Woroniecki	Team: Squad #12	CCRB Case #: 201802576	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/23/2018 2:00 PM	Location of Incident: 61st Precinct stationhouse	18 Mo. SOL 9/23/2019	Precinct: 61		
Date/Time CV Reported Tue, 04/03/2018 12:41 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/03/2018 12:41 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Andy Heenpella	17785	960651	061 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Rebecca Coogan	03220	956545	061 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Andy Heenpella	Abuse: Police Officer Andy Heenpella threatened to arrest § 87(2)(b)	A . Unsubstantiated			

Case Summary

On April 3, 2018, § 87(2)(b) filed this complaint with the CCRB via phone.

On March 23, 2018, at about 2:00 p.m., § 87(2)(b) was at the 61st Precinct stationhouse to report that she was being stalked by her brother, § 87(2)(b). While there, she spoke with an officer identified via the investigation as PO Andy Heenpella of the 61st Precinct. PO Heenpella allegedly told § 87(2)(b) that she lied about her brother and that he was going to arrest her for it (**Allegation A: Abuse of Authority – Threat of Arrest, Unsubstantiated**). After briefly speaking to PO Heenpella, § 87(2)(b) exited the stationhouse without filing a criminal report. She was not summonsed or arrested during the incident.

There was no video footage of this incident.

Findings and Recommendations

Allegation A: Abuse of Authority - Police Officer Andy Heenpella threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that she came to the 61st Precinct stationhouse to report harassment by § 87(2)(b). While there, she observed PO Heenpella, who responded to a 911 job involving § 87(2)(b) and § 87(2)(b) on February 28, 2018. On that day, § 87(2)(b) called 911 to report that § 87(2)(b) harassed her, and PO Heenpella and PO Coogan interviewed her and prepared a complaint report. Seeing a familiar face inside of the stationhouse, § 87(2)(b) waved at PO Heenpella, who approached her in the civilian waiting area and acknowledged interacting with her on February 28, 2018. § 87(2)(b) informed PO Heenpella that she obtained an order of protection against § 87(2)(b) and expected him to be “happy for her.” Instead, PO Heenpella stated that § 87(2)(b) was “lying” and that he was going to arrest her for it. § 87(2)(b) was unable to provide more context of their conversation and what specifically PO Heenpella believed to be a lie. § 87(2)(b) did not remember the exact wording of PO Heenpella’s threat and PO Heenpella did not inform § 87(2)(b) what in specific she could have been arrested for. PO Heenpella told § 87(2)(b) that she could not go back to her mother’s house, where § 87(2)(b) resides, and § 87(2)(b) answered that according to her attorney, she could legally enter it. § 87(2)(b) became upset that PO Heenpella “turned against her” and exited the stationhouse without filing any reports or speaking to anyone else (**Board Review 01**).

PO Heenpella stated that he first interacted with § 87(2)(b) on February 28, 2018, when he and PO Coogan responded to § 87(2)(b)’s home in regard to a harassment complaint made by § 87(2)(b). § 87(2)(b) reported that she was harassed by § 87(2)(b) and § 87(2)(b) informed the officers that he wanted § 87(2)(b) out of his apartment. After speaking to both parties, PO Heenpella established that § 87(2)(b) had no legal rights over the apartment, prepared a complaint report for harassment, and did not take any law enforcement actions against § 87(2)(b) or § 87(2)(b). PO Heenpella acknowledged briefly speaking to § 87(2)(b) at the 61st Precinct stationhouse a few days after their initial interaction. PO Heenpella stated that § 87(2)(b) spoke to him about § 87(2)(b)’s apartment and that she gave him information which was “not true.” PO Heenpella did not remember what in specific § 87(2)(b) told him, however, he recalled informing § 87(2)(b) that she did not have legal rights over the apartment and that if she wanted to dispute it, she should hire a lawyer to challenge § 87(2)(b)’s claim. PO Heenpella did not remember if he told § 87(2)(b) that she was lying or if he threatened her with arrest. PO Heenpella confirmed that “lying” was not a crime and that § 87(2)(b) could not have been arrested for anything at the time of their interaction.

PO Heenpella believed that he was accompanied by PO Coogan while speaking to § 87(2)(b) and there were no other officers in their vicinity **(Board Review 02)**.

PO Coogan, who had no independent recollection of this incident, stated that she did not participate in any conversation involving § 87(2)(b) inside of the 61st Precinct stationhouse, and did not observe § 87(2)(b)'s interaction with PO Heenpella. PO Coogan did not hear PO Heenpella tell § 87(2)(b) that she was lying or threaten to arrest her. She also did not know whether § 87(2)(b) could have been arrested for any offenses at the time she conversed with PO Heenpella **(Board Review 03)**.

§ 87(2)(g)

It is therefore recommended that Allegation A be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) **(Board Review 04)**.
- PO Heenpella has been a member of the service for two years and has not been a subject in any prior CCRB complaints **(Board Review 05)**.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of June 15, 2018, there was no notice of claim filed for this complaint **(Board Review 07)**

Squad No.: 12

Investigator: _____ INV. WORONIECKI 08/31/2018
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____